3.3 The Bill of Rights

Americans enjoy many rights every day, from freely expressing opinions in public and in the press to protesting government actions. These and other fundamental rights are part of our identity as a nation, and we have the Framers of the Constitution to thank for them.

MAIN IDEA The Framers included a Bill of Rights in the Constitution to protect the fundamental rights and individual liberties of all citizens.

AMENDING THE CONSTITUTION

In 1787, the United States Constitution represented a bold new way of governing based on the consent of the governed. It also established a government that has survived for more than 200 years. Its survival has resulted from the control of power and interests through a system of checks and balances. Through Article 5, the Constitution provided a process by which it could adapt to the needs of a changing society. This process made possible a series of amendments protecting individual liberties from governmental abuses.

In order to amend, or change, the Constitution, Congress or two-thirds of the state legislatures must propose an amendment. Then three-fourths of the state legislatures must approve it. If they do, the amendment is ratified. This vigorous process helps protect citizens from unreasonable amendments.

Congress added the first 10 amendments, known as the Bill of Rights, to the Constitution in 1791. The amendments were intended to protect the freedoms of life, liberty, and the pursuit of happiness—all ideals that were put forth in the Declaration of Independence.

INDIVIDUAL FREEDOMS

The First Amendment protects fundamental individual freedoms: freedom of religion, freedom of speech and the press, and freedom of peaceful assembly and petitioning. In 1786,

The Bill of Rights

FIRST AMENDMENT	Freedoms of speech, religion, the press, and the right to peacefully assemble and to petition the government
SECOND AMENDMENT	The right to form a well-regulated militia and to keep and bear arms
THIRD AMENDMENT	Protection from being forced to quarter soldiers
FOURTH AMENDMENT	Protection against searches and seizures without a warrant based on reasonable grounds
FIFTH AMENDMENT	The right of an arrested individual to know what he or she is accused of; protection against being tried for the same crime twice; protection against unjustified deprivation of life, liberty, or property; the right to refuse to testify against oneself
SIXTH AMENDMENT	The right to a fair and speedy trial by jury; the right to a lawyer
SEVENTH AMENDMENT	The right to a jury trial in certain civil cases
EIGHTH AMENDMENT	Protection against excessive bail and cruel or unusual punishment
NINTH AMENDMENT	Protection against others taking away rights not mentioned in the Bill of Rights
TENTH AMENDMENT	The right of states and citizens to retain powers not given to the federal government

See the Citizenship Handbook for the full text of the United States Constitution.

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CRITICAL VIEWING On August 28, 1963, 250,000 participants at the March on Washington for Jobs and Freedom gathered in front of the Lincoln Memorial in Washington, D.C., where they heard speeches on issues of racial equality and economic justice. The event concluded with Dr. Martin Luther King, Jr., delivering his "I Have a Dream" speech. What does this photo convey about the participants' confidence in enjoying the protection of the First Amendment?

Thomas Jefferson wrote a **statute**, or a law written by a legislative body, for the state of Virginia that served as a forerunner to the First Amendment. In the Statute for Religious Freedom, Jefferson strongly advocated for religious liberty and the separation of church and state. Some delegates objected to including this idea in the Constitution, believing that the Constitution should reflect the nation's Christian foundation. Other delegates, such as James Madison, contended that safeguarding people's "natural right" to worship freely, or not worship at all, was more important. Because of the First Amendment, Americans have the right to practice any religion or no religion without fear of discrimination or persecution.

Freedom of the press, another First Amendment right, was a new concept in the 1780s, when governments routinely blocked the publication of stories they disliked. Governments also forced newspapers to print articles that suited their own purposes. The First Amendment made both acts illegal, and today the American press can report and publish freely. The First through Eighth Amendments focus on individual rights. The Ninth Amendment protects any personal freedoms not specified in the Bill of Rights. The Tenth Amendment allows citizens and states to keep any powers not mentioned in the Constitution.

Throughout our nation's history, we, the people, have added additional amendments to the Constitution to expand and clarify our rights. These amendments have been vital to the development of an American identity. They have established many of the essential freedoms Americans enjoy today.

HISTORICAL THINKING

1. **READING CHECK** Why was protecting the rights and freedoms listed in the Bill of Rights important to citizens of the new nation?
2. **MAKE GENERALIZATIONS** In what ways are natural rights protected in the Bill of Rights?
3. **EXPLAIN** What requirements are involved for proposed and ratified amendments, and why is this process in place?

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